

The McAlester City Council met in a Regular session on Tuesday, March 25, 2025, at 6:00 P.M. after proper notice and agenda was posted, March 21, 2025, at 9:31 A.M.

Mother Janie Koch, All Saints Episcopal Church gave the invocation, and led the Pledge of Allegiance.

Call to Order

Mayor Few called the meeting to order at 6:10 P.M.

Roll Call

Council Roll Call was as follows:

Attending:	Levi Gilmore, Robin Woodley, Chris Stone, Randy Roden, Billy Jack Boatright, Kevin Beaty & Justin Few
Absent:	None
Presiding:	Justin Few, Mayor
Staff Present:	Dave Andren, City Manager; Adrian O’Hanlon, PIO; Jayme Clifton, Community Development Director; Ken Wimer, Economic Development Director; Benny Brooks, Assistant Fire Chief; Billy Sumner, Tourism Manager; Justice Adair, I.T. Computer Support; John T. Hammons, City Attorney and Cora Middleton, City Clerk

Recognition and Awards

Mayor Few read a proclamation proclaiming April, 2025 as Autism Awareness and Acceptance Month.

Citizens’ Comments on Non-Agenda Items

Residents may address Council regarding an item that is not listed on the Agenda. Residents must provide their name and address. Council requests that comments be limited to five (5) minutes.

There were no citizen comments.

Consent Agenda

All matters listed under the Consent Agenda are considered to be routine by the City Council and will be enacted by one motion. There will not be separate discussion of these items. If discussion is desired, that item will be removed from the Consent Agenda and will be considered separately.

- A. Approval of the Minutes from March 11, 2025, Special Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- B. Approval of the Minutes from March 11, 2025, Regular Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- C. Approval of the Minutes from the March 13, 2025, Special Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- D. Approval of Claims for March 05, 2025 through March 18, 2025. *(Sherri Swift, Chief Financial Officer)* in the following amounts: General Fund - \$188,820.33; Parking Authority - \$312.86; Nutrition - \$991.66; Landfill Reserve/Sub-Title D - \$5,388.00; Educational Fund - \$43,433.06; Tourism Fund - \$84,991.01; E-911 - \$1,343.25; Economic Development – \$5,988.83; Grants & Contributions - \$6,583.55; Fleet Maintenance - \$16,080.60; CIP Fund - \$40,438.16; Child Abuse Response Fund - \$1,598.00; Stormwater Fund - \$14,380.10; Infrastructure Fund - \$1,176.00 and MRHC-Cancer Center Fund - \$43,433.06.

- E. Discussion and possible action to indefinitely postpone Tort Claim No. 216351-1-LN filed by City of McAlester. *(Cora Middleton, City Clerk)*
- F. Discussion and possible action, to concur with the Mayor's appointment of Dr. Janet Wansick to the McAlester Regional Health Center Authority for a term to expire February 28, 2031. *(Cora Middleton, City Clerk)*
- G. Discussion and possible action, to concur with the Mayor's reappointment of Lester Cashmere to the McAlester Regional Airport Advisory Board for a term to expire March 31, 2027. *(Cora Middleton, City Clerk)*
- H. Discussion and possible action, to concur with the Mayor's reappointment of Jeff Wolf to the McAlester Regional Airport Advisory Board for a term to expire March 31, 2027. *(Cora Middleton, City Clerk)*
- I. Discussion and possible action, to approve the purchase of a Monster Flow Tester with Adapter and Fittings at the cost of \$1,600.00 from Davenport Fire Equipment Sales, LLC. The Monter Flow Tester with Adapter and Fittings will be purchased with funds from the City Of McAlester's Fire Department portion of the County quarter cent excise tax for fire services. *(Brett Brewer, Fire Chief)*

Mayor Few requested that Items A and B be removed for individual consideration.

Councilor Gilmore moved to approve Consent Agenda items C through I. The motion was seconded by Councilor Boatright. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Boatright, Woodley, Stone, Roden, Beaty & Mayor Few

NAY: None

Mayor Few declared the motion carried.

Items Removed from Consent Agenda

- A. Approval of the Minutes from March 11, 2025, Special Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- B. Approval of the Minutes from March 11, 2025, Regular Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*

Mayor Few explained that in the March 11, 2025, Special Meeting Minutes had Rev. Glen Meyer as giving the invocation and leading the Pledge of Allegiance and during that Special Meeting there was no invocation or Pledge of Allegiance. He then explained that in the March 11, 2025, Regular Meeting Minutes showed that Councilors Stone and Boatright had been absent but then showed them voting on the agenda items later in the minutes.

Councilor Boatright moved to approve the Minutes from the March 11, 2025, Special Meeting of the McAlester City Council and the Regular Meeting of the McAlester City Council with the corrections noted. The motion was seconded by Councilor Woodley, and the vote was taken as follows:

AYE: Councilmembers Boatright, Woodley, Stone, Roden, Beaty, Gilmore & Mayor Few

NAY: None

Mayor Few declared the motion carried.

Vice-Mayor Beaty moved to open a Public Hearing to address three (3) proposed ordinances. The motion was seconded by Councilor Gilmore, there was no discussion, and the vote was taken as follows:

AYE: Councilmembers Beaty, Gilmore, Stone, Roden, Boatright, Woodley & Mayor Few

NAY: None

Mayor Few declared the motion carried, and the Public Hearing was opened at 6:17 P.M.

Public Hearing

All persons interested in any ordinance listed under Scheduled Business shall have an opportunity to be heard in accordance with Article 2, Section 2.12(b) of the City Charter.

AN ORDINANCE OF THE CITY OF MCALESTER, OKLAHOMA; AMENDING MCALESTER CITY CODE CHAPTER 82 PARKS, WATER ACTIVITIES AND OTHER RECREATION, ARTICLE V PUBLIC TRAIL REGULATIONS; REPEALING ALL CONFLICTING ORDINANCES, AND PROVIDING FOR SEVERABILITY.

AN ORDINANCE AMENDING THE GENERAL ZONING ORDINANCE AND ACCOMPANYING MAP THERETO KNOWN AS GENERAL ZONING ORDINANCE NO. 1843 (1989), BY CHANGING THE CLASSIFICATION OF THE ZONING DISTRICT FOR ALL OF LOT 3 AND ALL OF LOT 4 AND ALL THAT PART OF LOTS 2 AND 5 LYING WEST OF GREEN MEADOWS SUBDIVISION NO. 1, IN BLOCK 6, CITY OF MCALESTER FORMERLY SOUTH MCALESTER, PITTSBURG COUNTY, STATE OF OKLAHOMA, FROM R-1B SINGLE-FAMILY RESIDENTIAL DISTRICT TO C-3 GENERAL COMMERCIAL DISTRICT

AN ORDINANCE APPROVING AND ADOPTING THAT CERTAIN PROJECT PLAN RELATING TO INCREMENT DISTRICT NUMBER TWO, CITY OF MCALESTER, OKLAHOMA ("MID-MCALESTER DEVELOPMENT PROJECT INCREMENT DISTRICT") DATED FEBRUARY 1, 2025; RATIFYING AND CONFIRMING ACTIONS, RECOMMENDATIONS AND FINDINGS; ESTABLISHING "INCREMENT DISTRICT NUMBER TWO, CITY OF MCALESTER, OKLAHOMA"; DESIGNATING AND ADOPTING PROJECT AREA AND INCREMENT DISTRICT BOUNDARIES; ADOPTING CERTAIN FINDINGS; APPORTIONING INCREMENTAL AD VALOREM REVENUES; CREATING THE MID-MCALESTER DEVELOPMENT PROJECT INCREMENT DISTRICT APPORTIONMENT FUND; DESIGNATING THE MCALESTER ECONOMIC DEVELOPMENT AUTHORITY AS THE PUBLIC ENTITY TO CARRY OUT AND ADMINISTER THE PROJECT PLAN AND AUTHORIZING THE AUTHORITY TO MAKE MINOR PLAN AMENDMENTS; REPEAL OR MODIFICATION OF ORDINANCE; DESIGNATING THE CHAIRMAN OF THE MCALESTER ECONOMIC DEVELOPMENT AUTHORITY AS THE PERSON IN CHARGE OF THE ADMINISTRATION OF THE PLAN; PROVIDING FOR SEVERABILITY; AND CONTAINING OTHER PROVISIONS RELATING THERETO.

There were no questions or comments, and a motion to close the Public Hearing was made by Councilor Gilmore. The motion was seconded by Vice-Mayor Beaty, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Beaty, Roden, Boatright, Woodley, Stone & Mayor Few

NAY: None

Mayor Few declared the motion carried, and the Public Hearing was closed at 6:18 P.M.

Scheduled Business

1. Discussion and possible action to approve and adopt the ordinances for Increment District Number Two, also known as the Mid-McAlester Development Project Increment District.
(Ken Wimer, Economic Development Director)

Executive Summary

Motion to approve and authorize the mayor to sign the Increment District Number Two Ordinance, also known as the Mid-McAlester Development Project Increment District.

Director Wimer addressed the Council explaining that the following corrections to the proposed Plan that needed to be made:

Page 2: Section II typo change "roposed" to "proposed"

Page 3: Section IX add "Appendix E – "Impact Analysis"

Page 5: Section II, Para A, Line 8, date change from "July 1, 2034" to "June 30, 2034"

Page 6: Section III, Para A, Line 12, change dollar amount from "\$8,625, 000" to "\$8,615,000"

Page 7: Section D, Line 9 change dollar amount "\$80,000" to "\$90,000"

Page 7, Section D, Line 9 change “8-year” to “9-year”

Page 7, Section D, Line 10 change dollar amount “\$1,125,000” to “\$1,135,000”

Page 7, Section IV, Para B, line 5, date change from “June 30, 2034” to “July 1, 2034”

Page 8: Section IV, para B (cont’d from page 7), para 2, line 3-4, date change from “July 1, 2034” to “June 30, 2034”

Page 14: Line 1, change from “8-year” to “9-year”

Page 19: Heading “SOUTHEAST OKLAHOMA LIBRARY SYSTEM”, Line 1, change “SOLS” to “SEOLS”

Page 19: Heading “SOUTHEAST OKLAHOMA LIBRARY SYSTEM”, Line 4, change “SOLS” to “SEOLS”

Page 19, “Heading Impacts of Sales Tax Revenue...” Line 8, change “8-year” to “9-year”

Councilman Roden stated that he would like to have this tabled until a third-party traffic study could be performed.

TIF Committee Chairman Browne addressed the Council reminding them of the tight time schedule this process was on and that any delay could cause the loss of the large sporting retail store.

ORDINANCE NO. 2831

AN ORDINANCE APPROVING AND ADOPTING THAT CERTAIN PROJECT PLAN RELATING TO INCREMENT DISTRICT NUMBER TWO, CITY OF MCALESTER, OKLAHOMA (“MID-MCALESTER INCREMENT DISTRICT”) DATED FEBRUARY 1, 2025; RATIFYING AND CONFIRMING ACTIONS, RECOMMENDATIONS AND FINDINGS; ESTABLISHING “INCREMENT DISTRICT NUMBER TWO, CITY OF MCALESTER, OKLAHOMA”; DESIGNATING AND ADOPTING PROJECT AREA AND INCREMENT DISTRICT BOUNDARIES; ADOPTING CERTAIN FINDINGS; APPORTIONING INCREMENTAL AD VALOREM REVENUES; CREATING THE MID-MCALESTER DEVELOPMENT PROJECT INCREMENT DISTRICT APPORTIONMENT FUND; DESIGNATING THE MCALESTER ECONOMIC DEVELOPMENT AUTHORITY AS THE PUBLIC ENTITY TO CARRY OUT AND ADMINISTER THE PROJECT PLAN AND AUTHORIZING THE AUTHORITY TO MAKE MINOR PLAN AMENDMENTS; REPEAL OR MODIFICATION OF ORDINANCE; DESIGNATING THE CHAIRMAN OF THE MCALESTER ECONOMIC DEVELOPMENT AUTHORITY AS THE PERSON IN CHARGE OF THE ADMINISTRATION OF THE PLAN; PROVIDING FOR SEVERABILITY; AND CONTAINING OTHER PROVISIONS RELATING THERETO.

Vice-Mayor Beaty moved to approve **ORDINANCE NO. 2831**, adopting the Project Plan for Tax Increment Financing District Number 2, Mid-McAlester Increment District. The motion was seconded by Councilor Gilmore.

Before the vote, there was discussion concerning what the approval of the ordinance would do, how the site plans would have to be approved before any construction could begin and any changes to the plan would have to be presented to the Council for approval prior to the changes being implemented.

Melissa Westfall, Hilborne & Weidman, P.C. addressed the Council explaining that this was the anticipated project and there would be an additional agreement between the City and the developer covering what would actually be constructed. She explained that this set the parameters of what the City and other taxing entities were willing to give to the developer for the public improvements that were proposed.

Attorney Hammons summarized that the City expects the Developer to invest \$48 million and the taxing entities were willing to forego \$10 million in taxes.

There was another brief discussion concerning that this was step one (1) of many steps and that all meetings would be public and most likely in the Council Chambers.

There was no further discussion, and the vote was taken as follows:

AYE: Councilmembers Beaty, Gilmore, Boatright, Woodley, Stone & Mayor Few

NAY: None

ABSTAIN: Councilmember Roden (counted as a no vote)

Mayor Few declared the motion carried.

2. Discussion and possible action, to approve an Ordinance of the City of McAlester, Oklahoma, amending McAlester City Code, Chapter 82 Parks, Water Activities and other Recreation, Article V Public Trail Regulations; repealing all conflicting ordinances providing for severability and declaring an emergency; and authorizing the mayor to sign the ordinance. (*Jayme Clifton, Community Development Director*)

Executive Summary

Motion to approve the ordinance amending Chapter 82 Parks, Water Activities, and other Recreation Article V Public Trail Regulation; repealing all conflicting ordinances; providing for severability; declaring an emergency; and authorizing the mayor to sign the ordinance.

Director Clifton addressed the Council explaining that this was to add e-bikes to the City's Code in Chapter 82. She stated that this would add definitions for bicycle, electric-assisted bicycle, natural trail, and public multi-use trail. She commented that this amendment included the definition of all three (3) classes of electric-assisted bicycle, sets the speed limits, and allowed their use on public multi-use trails. She added that the use of e -bikes would continue to grow since it was a cheaper, cleaner, and more accessible form of transportation.

ORDINANCE NO. 2832

AN ORDINANCE OF THE CITY OF MCALESTER, OKLAHOMA; AMENDING MCALESTER CITY CODE CHAPTER 82 PARKS, WATER ACTIVITIES AND OTHER RECREATION, ARTICLE V PUBLIC TRAIL REGULATIONS; REPEALING ALL CONFLICTING ORDINANCES, PROVIDING FOR SEVERABILITY AND DECLARING AN EMERGENCY.

There was no discussion, and a motion to approve **ORDINANCE NO. 2832**, amending Chapter 82, Article V of the City of McAlester Code of Ordinances was made by Vice-Mayor Beaty. The motion was seconded by Councilor Boatright, and the vote was taken as follows:

AYE: Councilmembers Beaty, Boatright, Gilmore, Woodley, Stone, Roden & Mayor Few

NAY: None

Mayor Few declared the motion carried.

Councilor Gilmore moved to approve the EMERGENCY CLAUSE. The motion was seconded by Councilor Stone, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Stone, Woodley, Roden, Boatright, Beaty & Mayor Few

NAY: None

Mayor Few declared the motion carried.

4. Discussion and possible action to authorize the mayor to sign the Collective Commitment participant agreement to support the Atoka Energy Park Project. This commitment of support requires only demographical information to be utilized as part of the project to identify the greater metropolitan area, no city funding will be authorized for this commitment. (*John Hardy, Project Development Director, Prismecs USA and JRE Strategies*)

Executive Summary

Motion to authorize the mayor to sign the Collective Agreement to support the Atoka Park Project.

Brian Cathey, Mayor of City of Atoka, addressed the Council explained that the City of Atoka, with other regional municipalities, was working on a large energy park that would be used on-site to meet the needs of large data centers. He stated that plans were to construct a one-gigawatt power facility, which would generate its own energy and supply reliable energy to the data centers without impacting the public grid.

John Hardy, Project Development Director, Prismecs USA and JRE Strategies addressed the Council presenting the initiative for the project to the Council. He highlighted the economic benefits the project would bring to the region, stating that it was expected to create 150 to 250 jobs in Atoka. He commented that this would create additional opportunities in McAlester as workers sought housing and other accommodations. He added that this agreement of support would not place any financial commitment on the City of McAlester, the project would be valued at \$4 billion and aimed to provide a self-contained power source to support the data center industry's growing demand for energy.

Councilor Roden asked to be excused at 7:06 P.M.

After a brief discussion, concerning the location of the energy park, if there would be an agreement with the County Commissioners, what the payback was based on, this being a non-binding letter of intent and the City Attorney having no objections to the letter supplied in the Council packet a motion to authorize the Mayor to sign the Collective Agreement to support the Atoka Energy Park Project was made by Vice-Mayor Beaty. The motion was seconded by Councilor Gilmore, and the vote was taken as follows:

AYE: Councilmembers Beaty, Gilmore, Boatright, Woodley, Stone & Mayor Few

NAY: None

Mayor Few declared the motion carried.

3. Discussion and possible action, to approve an Ordinance amending the general zoning ordinance and accompanying map thereto known as General Zoning Ordinance No. 1843 (1989) by changing the classification of the zoning district for all of Lot 3 and Lot 4 and part of Lots 2 and 5 lying West of Green Meadows Subdivision No. 1, in Block 6 City of McAlester formerly South McAlester, Pittsburg County, from R-1B Single-Family Residential District to C-3 General Commercial District. (*Jayme Clifton, Community Development Director*)

Executive Summary

Motion to approve the Ordinance in changing the classification of the zoning district for the property identified in the Ordinance from R-1B Single-family Residential District to C-3 General Commercial District; and authorizing the mayor to sign the ordinance.

Director Clifton addressed the Council explaining that the applicant had requested rezoning the property so that he could construct a new building for a basketball training facility and that C-3 appeared to be the first commercial district to identify "youth recreation center" as an allowable use. She stated that the McAlester Planning Commission had met on March 4, 2025 and voted eight (8) to zero (0) to approve the applicant's rezoning request.

Brett Williams, 301 E. Washington Ave. addressed the Council explaining his plans for the training facility.

ORDINANCE NO. 2833

AN ORDINANCE AMENDING THE GENERAL ZONING ORDINANCE AND ACCOMPANYING MAP THERETO KNOWN AS GENERAL ZONING ORDINANCE NO. 1843 (1989), BY CHANGING THE CLASSIFICATION OF THE ZONING DISTRICT FOR ALL OF LOT 3 AND ALL OF LOT 4 AND ALL THAT PART OF LOTS 2 AND 5 LYING WEST OF GREEN MEADOWS SUBDIVISION NO. 1, IN BLOCK 6, CITY OF MCALESTER FORMERLY SOUTH MCALESTER, PITTSBURG COUNTY, STATE OF OKLAHOMA, FROM R-1B SINGLE-FAMILY RESIDENTIAL DISTRICT TO C-3 GENERAL COMMERCIAL DISTRICT.

A motion to approve **ORDINANCE NO. 2833**, was made by Councilor Boatright. The motion was seconded by Councilor Gilmore, and the vote was taken as follows:

AYE: Councilmembers Boatright, Gilmore, Woodley, Stone, Beaty & Mayor Few

NAY: None

Mayor Few declared the motion carried.

New Business

Any matter not known, or which could not have been reasonably foreseen prior to the time of posting the Agenda in accordance with Sec. 311.10, Title 25, Oklahoma State Statutes.

There was no new business.

Staff Reports

Manager Andren addressed the Council explaining that the Staff Reports had been added to each meeting as well as to his monthly report because the Council had requested that certain individuals update them on a department's activities.

Billy Sumner, Tourism Manager, addressed the Council reviewing how Tourism was funded, how tourism's purpose was to promote the City of McAlester, the various activities that were planned for the future and those that were occurring in the next few days.

Mayor Few asked Mr. Sumner to explain what his part was in the Jefferson Highway.

Mr. Sumner explained that he was the Vice-President of the Oklahoma Chapter of the Jefferson Highway Association.

Mayor Few commented on some of the recent activities that had been brought to McAlester and how they had financially impacted the City.

City Manager's Report

- Report on activities for the past two weeks.

Manager Andren stated that his monthly report was in the back of the Councilors packets. He reported that he had toured the Airport Terminal, and it was reaching substantial completion. He stated that it would be a beautiful building, and he was looking forward to the grand opening. He reported that his podcasts had started, and he had received some good comments. He reminded the Council that if they had any questions or concerns to let him know.

Remarks and Inquiries by City Council

Councilor Gilmore stated that he was excited with the growth that the City was experiencing and asked for grace and flexibility as the City moved into the future.

Councilor Woodley commented that she had listened to one of the podcase and it had been very informative.

Councilor Stone reminded everyone that the City-wide cleanup was coming in April and encouraged everyone to participate and help clean up McAlester.

Jared Harvin, 602 Oklahoma Ave. addressed the Council regarding the effect that the infrastructure projects were having on some of the local small businesses.

Councilors Boatright and Beaty did not have any comments or inquiries for the evening.

Mayor's Comments and Committee Appointments

Mayor Few commented that the weather getting warmer and the days staying lighter longer, he encouraged everyone to be aware of the increase in people being outside and at the parks.

Recess Council Meeting

Councilor Gilmore moved to recess the Regular Meeting and convene the Authorities. The motion was seconded by Councilor Stone. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Stone, Boatright, Beaty, Woodley & Mayor Few

NAY: None

Mayor Few declared the motion carried, and the meeting was recessed at 7:32 P.M.

Reconvene Council Meeting

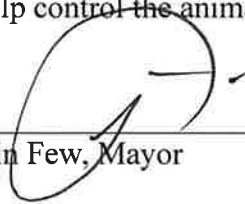
The Regular Meeting was reconvened at 7:34 P.M.

Adjournment

There being no further business before the Council, Mayor Few declared the adjourned at 7:34 P.M., and encouraged citizens to spay and neuter their pets to help control the animal population.




Cora Middleton, City Clerk


Justin Few, Mayor